

Mutual Non-Disclosure Agreement (NDA)

Digerati Experts, LLC and Client

Agreement Summary

Complete the highlighted fields. This NDA may be used for discussions, discovery, risk assessments, proposals, and delivery planning for IT and cybersecurity services.

Effective Date	[FILL - Month Day, Year]
Client Legal Name	[FILL - Client Legal Name]
Client Address	[FILL - Client Address]
Client Representative	[FILL - Name / Title]
Disclosing Parties	Digerati Experts, LLC and Client (mutual)
Purpose	[FILL - e.g., evaluate and/or deliver IT, Workplace, Backup, and Cybersecurity services]
Governing Law	Arizona (unless replaced by a Master Services Agreement)

1. Parties

This Mutual Non-Disclosure Agreement ("Agreement") is entered into by and between **Digerati Experts, LLC** ("DE") and [FILL - Client Legal Name] ("Client"). DE and Client are each a "Party" and together the "Parties."

2. Purpose

The Parties wish to exchange certain confidential and proprietary information for the purpose of: [FILL - Purpose] (the "Purpose"). The Receiving Party will use Confidential Information solely to evaluate, plan, propose, or perform the Purpose.

3. Definitions

3.1 "Confidential Information" means any non-public information disclosed by a Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether in oral, written, electronic, visual, or other form, that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure. Confidential

Information includes, without limitation: business plans; pricing; financial data; customer data; employee data; technical information; security controls; network diagrams; credentials; system configurations; vulnerability findings; incident information; software, code, and documentation; and any analyses, reports, or summaries derived from such information.

3.2 "Representatives" means a Party's employees, officers, directors, contractors, professional advisors, and affiliates who have a need to know the Confidential Information for the Purpose and who are bound by confidentiality obligations at least as protective as those in this Agreement.

4. Confidentiality Obligations

4.1 Protection. The Receiving Party will (a) protect the Disclosing Party's Confidential Information using at least reasonable care and no less than the care it uses to protect its own confidential information of similar importance, (b) restrict access to those Representatives who need to know for the Purpose, and (c) not disclose Confidential Information to any third party except as permitted by this Agreement.

4.2 Use Limitation. The Receiving Party will use Confidential Information solely for the Purpose and will not use it for any other purpose, including to compete with the Disclosing Party or to solicit the Disclosing Party's customers using Confidential Information.

4.3 No Circumvention of Access Controls. The Receiving Party will not attempt to access the other Party's systems or data except as expressly authorized in writing (including via an executed SOW, written authorization, or documented project plan).

5. Exclusions

Confidential Information does not include information that the Receiving Party can demonstrate by written records: (a) is or becomes publicly available through no breach of this Agreement; (b) was known to the Receiving Party prior to disclosure without restriction; (c) is independently developed by the Receiving Party without use of the Confidential Information; or (d) is rightfully obtained from a third party without duty of confidentiality.

6. Compelled Disclosure

If the Receiving Party is required by law, regulation, court order, or governmental request to disclose Confidential Information, it will (to the extent legally permitted) provide prompt notice to the Disclosing Party so the Disclosing Party may seek protective treatment. The Receiving Party will disclose only the minimum amount required and will use reasonable efforts to obtain confidential treatment.

7. Term; Return or Destruction

7.1 Term. This Agreement begins on the Effective Date and continues for **[FILL - e.g., 3]** years unless terminated earlier by written notice. Termination does not relieve either Party of its obligations for Confidential Information disclosed before termination.

7.2 Survival. Confidentiality obligations survive for [FILL - e.g., 5] years after the last disclosure, except trade secrets (as defined under applicable law) will be protected for as long as they remain trade secrets.

7.3 Return/Destruction. Upon written request, the Receiving Party will promptly return or destroy the Disclosing Party's Confidential Information and certify destruction, except that the Receiving Party may retain one archival copy solely for legal/compliance purposes, subject to ongoing confidentiality obligations.

8. Ownership; No License

All Confidential Information remains the property of the Disclosing Party. No license or other rights are granted by this Agreement except the limited right to use Confidential Information for the Purpose. Nothing in this Agreement requires either Party to proceed with any business relationship or transaction.

9. Remedies

The Parties agree that unauthorized use or disclosure of Confidential Information may cause irreparable harm for which monetary damages may be inadequate. The Disclosing Party may seek injunctive or equitable relief in addition to any other remedies available at law or equity.

10. Miscellaneous

10.1 No Warranty. Confidential Information is provided "as is." Neither Party makes warranties regarding the accuracy or completeness of Confidential Information, except as set forth in a signed SOW or other written agreement.

10.2 Assignment. Neither Party may assign this Agreement without the other Party's prior written consent, except to a successor in connection with a merger, acquisition, or sale of substantially all assets.

10.3 Governing Law; Venue. This Agreement is governed by Arizona law, without regard to conflict-of-law principles, unless a later executed Master Services Agreement states otherwise. Any permitted legal action will be brought in a court of competent jurisdiction in Maricopa County, Arizona, unless the Parties agree otherwise in writing.

10.4 Entire Agreement. This Agreement is the entire agreement regarding confidentiality for the Purpose and supersedes prior discussions on this subject. Any amendment must be in writing and signed by both Parties.

11. Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement by their duly authorized representatives.

CLIENT

SERVICE PROVIDER

Client Legal Name: [FILL - Client Legal Name] Digerati Experts, LLC

Name: [FILL - Printed Name] Name: Joseph Petro

Title: [FILL - Title] Title: Owner

Signature: [FILL - Signature] **Signature:** [FILL - Signature]

Date: [FILL - Date] **Date:** [FILL - Date]

Optional Witness (If Required by Client Policy)

Witness Name [FILL - Printed Name]

Title [FILL - Title]

Signature [FILL - Signature]

Date [FILL - Date]